

for life extend to a married woman entitled to property as her separate estate or as a *feme sole*, and this brings the case of an infant married woman so entitled within sect. 60, and her powers can during infancy be exercised by the trustees of the settlement. But if the married woman is an infant married to a man of full age, and the property does not belong to her as her separate property or as a *feme sole*, a question arises whether the powers of the Act can be exercised during her infancy. For in that case, by sub-sect. (4) of sect. 61, the provisions of the Act referring to a tenant for life extend to * the married woman and her [*570] husband together, and as she and her husband together have the powers of a tenant for life, the case does not seem to fall within sect. 60, which applies only where the person having the powers is an infant. The case put appears to be a *casus omissus* from the Act.

32. Trust or direction for sale.—Where the settlement contains a trust or direction for the sale of the property, the rights and powers of the trustees and tenant for life stand upon a different footing, and are governed by the independent enactment contained in the 63d section (a). The construction of this section is somewhat obscure, and the extent to which the powers of trustees were affected by it was a question of grave difficulty; but by the Settled Land Act, 1884, the powers given by the 63d section of the Act of 1882 to tenants for life or other persons having limited interests are not to be exercised without the leave of the Court, which leave is to be given by order naming the persons to exercise the powers, and until such an order is made and registered as a *lis pendens*, it seems clear that the trustees may execute all trusts and powers reposed in them by the settlement as if the Settled Land Acts had not been passed, while after an order has been made and registered and so long as it remains in force the powers of the trustees are suspended, so far as relates to any purpose for which leave is given by the order to exercise a power conferred by the Act of 1882. Under

(a) As to this section and the extent to which the powers given by the settlement to trustees are affected by it and the Settled Land Act, 1884, see Chap. xxiii. s. 2, v.